

THIS DEED, made and entered into this 21 day of September, 1938, by and between FRED G. STILZ and LUCY V. STILZ, his wife, of Lexington, Fayette County, Kentucky, parties of the first part, and the SAVAGE LUMBER AND MANUFACTURING COMPANY, a corporation, with its principal office and chief place of business located in Lexington, Fayette County, Kentucky, party of the second part;

W I T N E S S E T H:

That for and in consideration of the sum of One (\$1.00) Dollar, cash in hand paid, the receipt of which is hereby acknowledged, and other good and valuable considerations, the receipt of all of which is hereby acknowledged, and in further consideration of the assumption and agreement to pay by second party of the 1939 County and State taxes, assessed as of July 1, 1938, and all subsequent taxes, the parties of the first part have bargained and sold, and do hereby give, grant, sell and convey unto the party of the second part, and its successors and assigns forever, the following described three (3) tracts of land located in the County of Fayette and State of Kentucky, on the East side of the Lexington and Maysville Turnpike just beyond the limits of the City of Lexington, to-wit:

Tract No. 1:

Beginning at a point on the East side of the Maysville Turnpike and the North side of an alley 15 feet wide, which leads off from the Maysville Turnpike in an Easterly direction, said alley being in the rear of the lots, fronting on the North side of Blue Grass Avenue; and running thence with the line of said alley for a short distance and then leaving said alley South 43.13 E. 633.6 feet; thence N. 49.18 E. 320 feet; thence N. 41.45 W. 34 feet; thence N. 47.59 E. 548 feet; thence N. 39.32 W. 186½ feet to the property of Berryman; thence S. 47.30 W. 246 feet; thence N. 46 W. 422 feet to the Maysville Pike; thence along the line of the Maysville Pike S. 47.30 W. 617 feet to the point of beginning, containing 10 acres; and being the same property which was conveyed to Fred G. Stilz by E.H. Reed and wife, by deed dated February 3, 1926, and of record in the Fayette County Court Clerk's Office in Deed Book 235, Page 586.

There is included in the above boundary of land two tracts or parcels which are hereby excepted therefrom, and are not conveyed hereby, to-wit:

Exception A; Lot No. 3, Block A, Shadowlawn, an addition to the City of Lexington, Kentucky, as shown on plat thereof recorded in the office of the County Court Clerk of Fayette County, Kentucky, in Plat Book No. 2, Page 176, and said property is more particularly described as follows, to-wit:

Beginning at a point on the East side of the Lexington and Paris Pike 95 feet South of the Southeasterly corner of Bermuda Avenue and said Lexington and Paris Pike; thence along said Paris Pike in a Southerly direction 45 feet to an alley; thence along said alley in an Easterly direction 129.6 feet; thence in a Northerly direction and parallel with said Lexington and Paris Pike 48.7 feet; thence in a Westerly direction 129.6 feet to the point of beginning; and being the same property which was conveyed by the said Fred G. Stilz and wife to Roy M. Newcome and wife, by deed dated August 15, 1927, and of record in the Fayette County Court Clerk's Office in Deed Book 244, Page 512.

Exception B:

Beginning at a fence post corner to Mullikin and Fred G. & Lucy V. Stilz property; thence with the old line of Stilz and Mullikin N. 42-16 W. 34 feet to a fence post; thence continuing with the old line of Mullikin and Stilz N. 48-33 E. 309 feet to a stake in the old line of Mullikin and Stilz; thence N. 42-16 W. 11 feet to an iron pin said pin being a new corner to Mullikin and Stilz; thence with a new line S. 48-29 W. 116 feet to an iron pin; thence S. 50-59 W. 50 feet to an iron pin; thence S. 47-44 W. 280 feet to an iron pin; thence S. 42-16 E. 42.9 feet to an iron pin in the old line of Mullikin and Stilz; thence with the old line of Mullikin and Stilz N. 48-56 E. 136.5 feet to the point of beginning; and being the same property conveyed by Fred G. Stilz, and wife, to Clara H. Mullikin, Executrix under the will of V.G. Mullikin, deceased, by deed dated September 21, 1938, recorded in the office of the Clerk of the Fayette County Court in Deed Book No. 304, at page 119.

Tract No. 2:

All that certain tract or parcel of land beginning at a fence post corner to Mullikin and Stilz; thence with the old line of Stilz N. 43 degrees 13' W. 386 feet to a point in the line of Stilz; thence S. 52 degrees 07' W. 9 feet to the North east side of a 15 foot alley; thence running with the northeast side of said alley S. 37 degrees 38' E. 385 feet to an old fence post, a new corner to Mullikin; thence with the new line of Mullikin N. 50 degrees 03' E. 45 feet to the point of beginning.

Tract No. 3:

All that certain tract or parcel of land beginning at a post corner to Berryman, Mullikin and the Fred G. & Lucy V. Stilz property, said beginning corner being the southeast corner of the Stilz property; thence with Berryman's line S. 39-19 E. 34 feet to an iron pin in the line of Berryman; said pin being a new corner to Mullikin and Stilz; thence with a new line to Mullikin S. 48-29 W. 238.8 feet to an iron pin a new corner to Mullikin; thence N. 42-16 W. 34 feet to an iron pin in the line of Mullikin and Stilz; thence with the old line of Mullikin and Stilz N. 48-29 E. 240 feet more or less to the point of beginning.

The above Tracts Nos. 2 & 3 being the same property conveyed from Clara H. Mullikin, individually, and as Executrix under the will of V.G. Mullikin, deceased, to F.G. Stilz by deed dated the 21 day of September, 1938, recorded in the office of the Clerk of the Fayette County Court in Deed Book No. 304, at page 145.

TO HAVE AND TO HOLD unto the said party of the second part, and its successors and assigns forever; and the said parties of the first part hereby release all of their right, title and interest in and to said property, including the dower, curtesy and homestead exemptions and all other exemptions allowed by law, and covenant to and with the party of the second part that they are lawfully seized in fee simple to said property and have good right to sell and convey the same as is herein done, and that the title to said property is clear, perfect and unencumbered, and that they will Warrant Generally the said title.

IN WITNESS WHEREOF the parties of the first part have hereunto set their hands on the day and year first above written,

(STAMPS \$12.50)

Fred G Stilz.

Lucy V. Stilz

STATE OF KENTUCKY
SCT:
COUNTY OF FAYETTE

I, Oma B. Bourne, a Notary Public in and for the County and State aforesaid, whose commission expires on the 31 day of March, 1942, do hereby certify that the foregoing instrument of conveyance, from Fred G. Stilz and Lucy V. Stilz, his wife, to the Savage Lumber and Manufacturing Company, a corporation, was this day produced before me in my office and acknowledged by Fred G. Stilz and Lucy V. Stilz to be their free and voluntary act and deed; all of which is certified to the proper office for record.

IN WITNESS WHEREOF I have hereunto set my hand and notarial seal this 21 day of September, 1938.

Oma B. Bourne

Notary Public, Fayette County, Kentucky.

Notary Public, Fayette County, Ky.,
My commission expires March 31, 1942.

(NOTARIAL SEAL)

STATE OF KENTUCKY
COUNTY OF FAYETTE Sct.

I, S. H. LEWIS, Clerk of the County Court of Fayette County, in the State of Kentucky, do hereby certify that on this day the foregoing instrument of writing from FRED G. STILZ AND LUCY V. STILZ, his wife, to SAVAGE LUMBER AND MANUFACTURING COMPANY, a corporation, was produced to me in my office, and ordered to record; whereupon the same with certificate thereon endorsed, duly stamped according to Act of Congress, and this my certificate, have been duly recorded in my office.

Witness my hand this 26th day of September 1938.

S. H. Lewis Clerk
James H. Moore D.C.